Oregon Department of Human Services

Licensed Child Caring Agency Site Visit Report
Residential Care

Licensee: Ed Wyller
Executive Director: Dan Golden

Date of site visit: March 9th, 2022
Licensing Coordinator: Ed Wyller

Other Regulatory or Accrediting Agencies: Oregon Youth Authority (OYA)

Program Compliance: The program was found to be compliant or will be compliant with OAR 413-215-0001 to 413-215-0131, Licensing Umbrella Rules, and OAR 413-215-0501 to 413-215-0586, Licensing Residential Care Agencies Rules. Personnel records were reviewed and compliance with required background checks was documented for employees in all programs.

Program Description(s): Klamath County reports the following program description for Crimson Rose:
"The Klamath Crimson Rose (KCR) serves females, ages 12-20, in need of behavioral stabilization services and provides Individualized Treatment Plans to these youth while also keeping them connected to their community support networks and families. The program provides an environment for youth, who are struggling to maintain in the community or community placement, to receive services aimed at developing personal responsibility, and appropriate and assertive behavioral skills development.
KCR is a culturally sensitive, intensive, trauma informed program that targets behaviors intended to improve psychosocial and behavioral functioning for the participants. This program will provide youth with an array of rehabilitation services appropriate to meet their unique and individualized needs and goals as defined in their assessment and ISSP. Daily services encourage, support and reinforce appropriate behaviors using evidence-based methods as documented in the individual's treatment plan. The Program will provide a minimum of 13 hours of individual and group counseling in an environment for change, targeting behaviors such as substance use, thinking errors, anger management, and other behaviors that have hindered their success thus far. The minimum 13 hours will include at least 2 hours of individual counseling, 10 hours of group counseling and skill building, 1 hour of consultation, and 1 hour of family counseling or parent education when appropriate. The evidence-based curriculum and screening tools are through Texas Christian University (TCU) and Change Companies, Forward Thinking and Voices curriculum. TCU Mapping-Enhanced Counseling has been chosen as a treatment modality due to the continued and overwhelming evidence on the effectiveness in increasing client motivation, engagement, participation, and retention in treatment. This cognitive-behavioral therapy utilizes node-link mapping as a visual tool to enhance a heightened level of awareness for an individual's thoughts, feelings, and actions improving the psychosocial and behavioral functioning of an adolescent upon completion of the program. Forward Thinking and Voices are also evidence-based CBT curriculum used in KCR and many other programs around the country.
Program also partners with Klamath Basin Behavioral Health to provide additional mental health services such as, Mental Health assessments, appropriate risk assessments and behavioral skills building. Cascades East Family Practice and a contracted Family Nurse Practitioner also provide medical support to the program.
Academically, client records are requested from prior schools to obtain the most current transcripts. Clients are enrolled in online courses using Odysseyware to fulfill credits toward their graduation requirements. Official GED pre-testing and official testing is available to those students who

are working toward their GED. Middle school students and those needing remedial work are offered Let's Go Learn, a program to strengthen math and reading skills. Students are in class three hours each school day with teachers available to help and guide them through the process."

Program type and services: Residential Care / Behavioral Health – BRS Level 5

Capacity and Age Range: 9 / ages 12-20

Funding sources: Oregon Youth Authority (OYA) – Behavior Rehabilitation Services (BRS)

Contracts and sources for referrals: Oregon Youth Authority (OYA)

Average length of stay: 90 days

Average daily population served: 7

Number of children served annually: 40-50

Use of seclusion or restraint: N/A

Interviews, Observations: I interviewed two clients separately in the visitation area of Crimson Rose to ensure privacy. When asked how Klamath County Juvenile Department – Crimson Rose ranks on a scale from (0-10 where 0=worst program and 10=best program), the client's reported program to be an 8 and 8.5 on that scale. Client's reported learning the following skills at Crimson Rose: regulate emotions, coping skills, learned their triggers, communication skills, and healthy boundaries. Both clients were able to discuss their treatment goals and discharge placement plans. Both clients reported attending multiple treatment groups a day and reported meeting with therapist individually. Drug and alcohol services are provided by Klamath Basin Behavioral Health. Clients reported feeling safe in the program and reported food to be good. Outings were reported to include parks, hiking, bowling, and movies. Both client's reported enjoying self-care night. The youth reported self-care nigh includes mud/clay masks, soak feet in Epsom salts, and braiding hair. Youth reported being respected by program staff and identified liking their case manager.

Crimson Rose continues to make their space feel less institutional. Achievements such as program graduation, attaining a GED, or High School diploma are recognized by youth having their name on the wall and being allowed to paint on the wall as well. Facility was clean. Currently construction is occurring around the Juvenile Detention building in creating new road, parking, and leveling areas for future development. Lottery dollars were attained for building an education center, kitchen, new independent program (house like setting), and possibly a transition program as well. Space has been created for a possible solar field and this, coupled with preexisting geothermal program, would make the site energy independent.

Program Strengths: Crimson Rose reports, “Program provides a continuum of behavioral health care services to up to nine Oregon Youth Authority female clients. Clients can be on probation or parole and in need of diversion from the correctional facility or general behavioral stabilization. Program provides safety, security, structure, and treatment unavailable in lower levels of care.”

Program Challenges: Crimson Rose reports, “Program has recently had some minor issues maintaining quality staff due to the pandemic at times.”

Changes that have occurred in the last 2 years: Crimson Rose reports, “Hired three full time direct care staff.”

Lawsuits: Crimson Rose reports no lawsuits.

Grievances and complaints filed in the last two years: Crimson Rose reports no formal grievances in last two years. Program Director Steve Quick has followed up on 57 complaints from youth over the last two years. Steve reports the nature of these complaints are typically a complaint about another youth’s behavior. Steve reports he will follow up on these complaints and talk to youth, staff, and work out a resolution regarding the matter. Crimson Rose reports of these 57 complaints zero have escalated to a formal grievance.

Corrective Actions and Timeframes: Please submit the following to verify compliance.

Within 45 days of receipt of this report Klamath County Juvenile Department – Crimson Rose must submit a letter of verification indicating the agency is in compliance with the specific rules cited above and describing how compliance will be maintained going forward. Along with the letter of verification, the agency must submit any and all specific documentation requested in the body of this report. The letter of verification and any additional requested documents can be emailed directly to Ed Wyller at Edward.Wyller@dhsoha.state.or.us or sent by regular mail to the following address:

Due to Covid-19 pandemic and working remotely the preferred method is to send directly to Ed Wyller at his email address

Department of Human Services, Children’s Care Licensing Unit
Attn: Ed Wyller
500 Summer St NE (E-94)
Salem, OR 97301

Exceptions: Current exception on file regarding bedroom egress with fixed bedroom windows.

Changes in License: N/A

Summary of Review					
Program and Services 413-215-0011(2)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
Program and services are in scope of license	x				
Governance of the Agency 413-215-0021	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(1)(a) Minimum of 5 board members			x	• Klamath County Juvenile Department does not have a board but is governed by County Commissioners.	
(2)(f) Formally evaluate the exec. Director's performance annually	x				
(2)(g) Approves annual budget	x				
(2)(h) Obtain and review an annual independent financial review or audit of financial records.	x				
(2)(k) Written quality improvement program	x				
(2)(l) Meeting minutes	x				
Executive Director or Program Director 413-215-0021	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(3)(a) knowledge of requirements for providing care and treatment appropriate to programs	x			• Missing Dan Golden's Background Check	
(3)(g) Approval from BCU		x			
Discipline, Behavior Management, and Suicide Prevention 413-215-0076	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(3) Agency uses appropriate and positive methods of behavior management and nationally recognized non-violent crisis intervention	x				
(3)(b)(C) Agency does not use chemical and mechanical restraint (excluding medically necessary devices/prescriptions)	x				
(3)(c) Agency uses appropriate time-out rooms (adequate space, heat, light and ventilation and is not capable of locking) and documents use in child's record when applicable			x		
(3)(e) Agency uses seclusion appropriately/consistent with policy			x		

(4) Agency has adequate plan in place to respond to suicidal behavior/warning signs	x				
Contractors (if applicable) 413-215-0061(6)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(a) Agency ensures the contractor meets the requirements of this rule and Chapter 413 division 215			x		
(b)(B) Contract includes the following: (i) Services provided (ii) Contractor fees (iii) Disclosure of information from contractor to agency (iv) Lines of authority (v) Adherence to rules, including background check (vi) Any liability of the agency for acts of the contractor, rights of indemnity and limitations on liability			x		
Supplemental Information Provided by CCA	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
Documents as indicated on the form titled "Renewal Licensing Required Documents"	x				
Documents as indicated on form titled "Required Financial Documents and Information"	x				
All required policies and procedures as identified in the "Umbrella Rules"	x				
All required policies and procedures as identified in "Agency Type Specific Rules"	x				
Physical Plant	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
413-215-0046(3)(a) Foster Rights Posted (if children in DHS custody)	x				
413-215-0051(1) Sufficient safe space, equipment, and office equipment	x				
413-215-0091(12) License is posted in common area at each facility	x				
413-215-0001(5)(d), 0516(4(a)(I) & 0521(1) Adequate furnishings and personal items	x				
413-215-0511(2)(a) &(c) Buildings are smoke free, clean and in good repair	x				
413-215-0511(2)(d) Rooms are free of harmful drafts, odors, and excessive noise	x				
413-215-0511(2)(e) Rooms are adequate in size and arrangement	x				

413-215-0511(2)(f) System provides a continuous supply of hot and cold water to taps located throughout the facility	x				
413-215-0511(2)(h) Building is well ventilated and room temperature is within a normal comfort range	x				
413-215-0516(1) All parts of the facility ensure the safety of children	x				
Room and Space Requirements Bedrooms 413-215-0516(3)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(a) Adequate furnishings and personal items				• Crimson Rose bedrooms have detention grade windows that do not allow egress, a current exception is in place regarding this matter.	
(b) Separate from rooms used for dining, living, laundry, kitchen, and storage	x				
(c) Outside room with window allowing egress from building			x		
(d) Ceiling at least 90 inches	x				
(e) Minimum 60 SF per bed	x				
(f) No more than 25 if dorm style			x		
(g) Permanently wired fixtures	x				
(h) Window covering	x				
(i) Beds are 3 feet apart and maintained to ensure safety			x		
Room and Space Requirements Bathrooms 413-215-0516(4)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(a)(A)&(B) 1:8 ratio for toilets and sinks	x				
(a)(D) Hot and cold running water, soap, and approved hand drying options	x				
(a)(E) 1:10 ratio for shower or bathtub	x				
(a)(E) Individual privacy	x				
(a)(F) Window covering	x				
(a)(G) Permanently wired fixtures	x				
(a)(H) Adequate ventilation	x				
(b)&(c) Wooden racks on floors are prohibited and impervious shower mats are disinfected & dried daily			x		
Room and Space Requirements Kitchen 413-215-0516(6)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(a) Used exclusively for storage, food preparation, dish washing and activities related to eating	x				
(b) Walls, floors are easily cleanable	x				
(c) Equipment and utensils are easily cleanable, durable, nontoxic, and kept clean	x				

(e) Equipment is easy to clean beneath, between and behind	x				
Room and Space Requirements 413-215-0516	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(2) There is a separate living room or lounge area – 15 SF minimum per child	x				
(5) There is a separate dining room with capacity for ½ of children in care and 15 SF per child in care	x				
(7) Laundry is separate from living areas, kitchen and dining	x				
(8) Separate storage areas are provided for food, kitchen supplies, utensils, clean linens, soiled linens and clothing, cleaning supplies and equip, poisons, chemicals, outdoor recreational and maintenance equipment	x				
(9) Outdoor activity area is protected from vehicles and other hazards and of a size and availability appropriate to the age and needs of children in care	x				
(11) & 413-215-0076(3)(c)(C)Time out rooms have adequate space, heat, light and ventilation and is not capable of locking			x		
Furnishings and Personal Items 413-215-0521	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(1) There is a bed with frame, clean mattress and pillow and personal storage (dresser, closet)	x				
(2) Linens are in good repair. There is a waterproof mattress cover or mattress. Linens are appropriate and towels and washcloths are provided	x				
(3) Bedding is changed weekly or when soiled	x				
(4)&(5) Personal hygiene supplies and appropriate clothing are provided	x				
Food Services 413-215-0536(1)&(2)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(1)(a) Meals are arranged daily, consistent with normal mealtimes that occur during the hours of operation	x			• Currently menus are not being kept for 6 months.	
(1)(b) Menus are prepared in advance in accordance with USDA guidelines, provide a variety of foods and are adjusted for seasonal changes.	x				

(1)(b) Menus are kept for at least 6 months		x			
(1)(c) Drinking water is freely available	x				
(2)(a) Food is stored, prepared & served in a sanitary manner	x				
(2)(c) & (d) Food products are obtained from commercial suppliers (exception of fruits & vegetables), unpasteurized juice is prohibited, and only Grade A pasteurized and fortified milk in appropriate container.	x				
Safety 413-215-0541	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(2)(a) Written emergency plan	x				
(2)(b) Telephone numbers for local police and fire are posted near all telephones	x				
(2)(c) Operative flashlights sufficient in number are readily available to staff	x				
(3)(a) Evacuation drill occurs monthly under varying conditions, is retained 2 yrs and contains; (A) identify of person conducting drill (B) date & time (C) notification method (D) staff participating (E) # of children & staff evacuated (F) special conditions simulated (G) problems encountered (H) time to complete	x				
Safety – Transportation 413-215-0541	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(5)(b) Vehicle has insurance policy, is smoke free, safe operating condition, and has first aid kit and fire extinguisher 2-A:10-BC	x				
Medication 413-215-0551	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(3)&(7)(e) Medications have a prescription and are stored in the original container with prescription label	x				
(4)&(5) Herbal supplements and remedies, medical treatments, special diets, physical therapy, physical aides or limitations have a written order signed by a physician or qualified medical professional.	x				
(7)(c) Medications are inaccessible to children	x				

(8) Medications are disposed in accordance with state and federal law	x				
(9) Written record of the disposal of medications is maintained and includes: (a) description and amount (b) name (c) reason (d) method (e) staff & witness signature	x				
(10) Written record of the administration of medication includes: (a) name (b) description (c) dates and times (d) missed doses (e) medication disposed (f) method of administration (g) ID of person administering (h) possible adverse reactions (i) medication taken outside facility	x				
Extracurricular, Enrichment, Cultural & Social Activities 413-215-0554	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(2) Children have ongoing opportunities to participate in at least one age-appropriate or developmentally appropriate activity	x				
Minimum Staffing Requirements 413-215-0561	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(1)&(2) Supervision is adequate for the type of program, location, age and type of children, ability of supervisor to respond, electronic back-up systems. Minimum ratios are maintained: Under 30 months of age: 1:4 30 months to > 6 yrs or non-ambulatory: 1:6 Ages 6 and older: 1:7 Overnight (staff awake) 1:10	x				
(4)(a) When one staff on duty, there is additional staff immediately available with max response time of 30 minutes	x				

(5) There is at least one on-site employee authorized to apply the *reasonable and prudent parent* standard	x				
Separation of Residents 413-215-0566	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(1) Children are in separate bedrooms than adults, unless parent and child, or there is written approval from guardian/parent and licensing coordinator	x				
(2) There is adequate supervision of children if both males and females are served by the program			x		

Personnel Files 413-215-0061	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
Staff Name/Position					
(3)(g) Date of Hire	x				
(3)(a) record of education, training and previous employment	x				
(1)(b) & (3)(b) reference checks completed and documented	x				
(1)(a) & (3)(c) Background check completed and documented	x				
(3)(d) Annual performance evaluations	x				
(3)(f) Record of personnel actions	x				
(3)(g) Termination date, reason for termination			x		
(3)(h) Current job description (1)(c) Employee meets minimum qualifications stated in current job description	x				
New Employee Orientation – Umbrella Requirements (30 days) 413-215-0061(4)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(a) Agency policies and procedures		x		• Reviewer unable to see evidence of these required trainings occurring within 30 days of hire.	
(b) Ethical and professional guidelines		x			
(c) Organizational lines of authority		x			
(d) Attributes of population served		x			
(e) & (5)(a) to (c) Mandatory reporting that includes:		x			

(a) legal definition of child abuse ORS 419B.005, Oregon Laws 2016, chapter 106, section 36 (b) legal responsibility to immediately report (c) legal responsibility to report is personal to the employee					
(f) Privacy laws		x			
(g) Emergency procedures		x			
New Employee Orientation – Residential (30 days) 413-215-0556	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(1)(a) Discipline and behavior management including de-escalation, crisis prevention, positive behavior management, and disciplinary techniques that are non-punitive in nature		x		• Reviewer unable to see evidence of these required trainings occurring within 30 days of hire.	
(1)(b) Restraint and seclusion (if applicable)			x		
Ongoing Training	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
413-215-0536(2)(b) Employees who handle food served to children have a valid food handler's card	x			• Since the pandemic program reports they have found it difficult in conducting CPR training.	
413-215-0541(5)(a) Employees transporting children have: current driver's license, insurance, trained in emergency procedures and behavior management, and training for 15+ passenger vans if applicable)	x				
413-215-0556(2)(a) Environmental emergencies		x			
413-215-0556(2)(b) Universal Precautions		x			
413-215-0556(2)(c) Discipline and Behavior Management	x				
413-215-0556(3) Staff providing direct care must maintain current CPR/First Aid certification		x			
413-215-0556(4) Designated staff authorized to apply reasonable and prudent parent standard are trained in application of the standard	x				
413-215-0061(5) Mandatory reporting (annually) that includes:	x				

(a) legal definition of child abuse ORS 419B.005, Oregon Laws 2016, chapter 106, section 36 (b) legal responsibility to immediately report (c) legal responsibility to report is personal to the employee					
Comments:					

Children's Records	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
Health Services 413-215-0546					
(2) Medical history obtained within 30 days (significant findings, current immunizations, history of surgical procedures-health issues-injuries, allergies, dental, vision, hearing, behavioral health, and physician orders)	**x**				
(2)(e) Documentation of age appropriate instruction – pregnancy prevention, nutrition, prevention of HIV & AIDS, and prevention and treatment of sexually transmitted disease	**x**				
(4)(a) to (f) Medical exams (3 in first year of life, 2,4,6,9,14)			**x**		
Consents 413-215-0576(1)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**

(a) Provide routine and emergency medical care	x			• Consents had section on recreation and activities however were missing any reference to the reasonable and prudent parent standard.	
(b) Use the discipline and behavior management system	x				
(c) Use restraint or seclusion (if applicable). Must specify the reasons for the intervention and how staff are trained and supervised	x				
(d) Restrict contact with persons outside of the agency	x				
(e) Allow access as defined in 413-215-0091 & 0101	x				
(f) Impose a dress code	x				
(g) Apply the reasonable and prudent parent standard		x			
Disclosures 413-215-0576(2) Parent/guardian has acknowledged in writing:	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(a) Information regarding personal or room searches and protocols for confiscation of contraband	x				
(b) Statement of Rights of Children and Parents/Guardians	x				
(c) Any policies and procedures upon request	x				
Authorizations 413-215-0576(3)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(a) Disclose or exchange information with others	x				
(b) Child specific visitors	x				
(c) Visitation resources are pre-approved	x				
(d) Activity specific authorizations are pre-approved to allow children to participate in potentially hazardous activities, including but not limited to using motorized yard equipment, swimming, and horseback riding.	x				
Information about Children in Care 413-215-0581(1) Summary sheet contains the following:	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(a)The name, gender, date of birth, religious preference, and previous address	x				

(b) Name and location of previous and current school	x				
(c) Date of admission	x				
(d) Legal custody	x				
(e) The name, address, and telephone number of: (A) The child in care's parents. (B) The child in care's legal guardian, if different than the parents, and a copy of the document that provides for his or her authority over the *child in care*. (C) Other persons significant to child (D) Other professionals to be involved in service planning (if applicable)	x				
Service Planning 413-215-0581(2)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(b) Intake document is completed the date child accepted into care (emergency placement 48 hours)	x				
(d) Assessment is completed within 30 days and contains relevant historical info., current behavioral observations, identified need for services, and how agency will provide services	x				
(e) (A)&(B) Service plan within 60 days (parent, guardian and child actively involved). Describes how child's issues will be addressed, anticipated outcomes and reviewed by child and guardian/parent.	x				
(e)(C)&(D) Service plan is reviewed quarterly and revised when information indicates other services should be provided	x				
Case Management 413-215-0581(3)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(a) Services are documented, progress toward achieving goals is tracked	x				
(b)-(d) discharge planning and instructions	x				
(f) Incident Reports	x				
Financial Records 413-215-0581(4)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**

Records contain date, amount, source, purpose, signatures			x		
Personal Possessions Records 413-215-0581(5)	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
Individual written inventory of all personal possessions is maintained and updated as needed	x				
Records and Documentation 413-215-0071	**Yes**	**No**	**N/A**	**Corrective Actions/Comments**	**Corrective Action Completed**
(1) Stored safely	x				
(2) Permanent, legible, dated, and signed	x				
(3)&(4) Uniform in organization, readily identifiable and accessible, current, and complete, containing all required info. No eraser tape or white out.	x				
(7) Permanent registry for each child includes: Name Gender Birth date Names, addresses of parents or guardians Dates of admission Placement upon discharge					
Comments:					

Licensing Coordinator's Signature: _____ Date: 3/10/22

Manager Review: _____ Date: 03-10-2022